

		On February 26, 2025, the Court continued the instant motion to be relieved as counsel of record at Moving Counsel's request and ordered Forward Counsel LLP to give notice. (ROA 105 [02/26/25 Minute Order].) There is no indication in the Register of Actions that Plaintiff Adorn Premiums LLC was served with either the initial moving papers or notice of the continued hearing date. Moving party to give notice. Motion to Be Relieved as Counsel of Record Attorney Brian Davis and Forward Counsel LLP move to be relieved as counsel for Plaintiff Joshua Ivey. The motion is DENIED without prejudice. On February 26, 2025, the Court continued the instant motion to be relieved as counsel of record at Moving Counsel's request and ordered Forward Counsel LLP to give notice. (ROA 105 [02/26/25 Minute Order].) There is no indication in the Register of Actions that Plaintiff Joshua Ivey was served with either the initial moving papers or notice of the continued hearing date. Moving party to give notice.
8.	2024-1421460 Bullard v. Florence Crittenton Services	Defendant Florence Crittenton Services of Orange County, Inc.'s demurrer to plaintiff Beatriz Bullard's complaint is overruled. Defendant is to file its answer within 10 days. The causes of action in Plaintiff's complaint are based on alleged sexual abuse when she was a minor in 1998-2000. Accordingly, the statute of limitation established by Code Civ. Proc. §340.1, 340.11 applies to her causes of action. The time for commencement of the action is within 22 years of the date that the plaintiff attains the age of majority or within 5 years of the date that the plaintiff discovers or reasonably should have discovered that the sexual assault caused the psychological injury or illness occurring after the age of majority, whichever period expires later. Code Civ. Proc. § 340.11(a)(1); 3 Witkin, Cal. Proc. 6th Actions § 644A (2025). Defendant generally demurs to the causes of action in Plaintiff's complaint because Plaintiff has not alleged facts to

		show she filed her complaint within the statute of limitations. But it is not Plaintiff's burden to allege facts to show her complaint is timely filed. A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar ... to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred. <i>Committee for Green Foothills v. Santa Clara County Bd. of Supervisors</i> (2010) 48 Cal.4th 32, 42. If the dates establishing the running of the statute of limitations do not clearly appear in the complaint, there is no ground for general demurrer. The proper remedy "is to ascertain the factual basis of the contention through discovery and, if necessary, file a motion for summary judgment...." (<i>United Western Medical Centers v. Superior Court</i> (1996) 42 Cal.App.4th 500, 505, 49 Cal.Rptr.2d 682.) <i>Roman v. County of Los Angeles</i> (2000) 85 Cal.App.4th 316, 324–325 (reversing order sustaining demurrer on statute of limitations grounds). <i>See also Geneva Towers Ltd. Partnership v. City of San Francisco</i> (2003) 29 Cal.4th 769, 781 (same); <i>City of Industry v. City of Fillmore</i> (2011) 198 Cal.App.4th 191, 207–208 (same); <i>Marshall v. Gibson, Dunn & Crutcher</i> (1995) 37 Cal.App.4th 1397, 1403 (same). Defendant provides no citation or explanation as to why this standard does not, or should not, apply to for the statute of limitations under Code Civ. Proc. §340.1, 340.11. Accordingly, relief through demurrer is not appropriate.
9.	2024-1417668 Kline v. Lucas	The general and special demurrer by Defendants Los Alamitos Race Course, erroneously sued as Los Alamitos Racetrack, and Dr. Edward C. Allred (collectively, "Demurring parties") to the first cause of action for negligence – premises liability alleged in the Complaint filed